

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1682

By: Roe

AS INTRODUCED

An Act relating to tobacco and vapor products;  
amending 63 O.S. 2021, Section 1-229.13, as amended  
by Section 34, Chapter 310, O.S.L. 2023 (63 O.S.  
Supp. 2024, Section 1-229.13), which relates to  
Prevention of Youth Access to Tobacco Act; modifying  
fines to include store manager when there is a sale  
to a minor; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-229.13, as  
amended by Section 34, Chapter 310, O.S.L. 2023 (63 O.S. Supp. 2024,  
Section 1-229.13), is amended to read as follows:

Section 1-229.13. A. It is unlawful for any person to sell,  
give or furnish in any manner any tobacco product, nicotine product  
or vapor product to another person who is under twenty-one (21)  
years of age, or to purchase in any manner a tobacco product,  
nicotine product or vapor product on behalf of any such person. It  
shall not be unlawful for an employee under twenty-one (21) years of  
age to handle tobacco products, nicotine products or vapor products  
when required in the performance of the employee's duties.

1 B. A person engaged in the sale or distribution of tobacco  
2 products, nicotine products or vapor products shall demand proof of  
3 age from a prospective purchaser or recipient if an ordinary person  
4 would conclude on the basis of appearance that the prospective  
5 purchaser may be under twenty-one (21) years of age.

6 If an individual engaged in the sale or distribution of tobacco  
7 products, nicotine products or vapor products has demanded proof of  
8 age from a prospective purchaser or recipient who is not under  
9 twenty-one (21) years of age, the failure to subsequently require  
10 proof of age shall not constitute a violation of this subsection.

11 C. 1. When a person violates subsection A or B of this  
12 section, the Alcoholic Beverage Laws Enforcement (ABLE) Commission  
13 shall impose an administrative fine of:

- 14 a. not more than One Hundred Dollars (\$100.00) to the  
15 employee and not more than Two Hundred Fifty Dollars  
16 (\$250.00) to the store manager for the first offense,  
17 b. not more than Two Hundred Dollars (\$200.00) to the  
18 employee and not more than Five Hundred Dollars  
19 (\$500.00) to the store manager for the second offense  
20 within a two-year period following the first offense,  
21 c. not more than Three Hundred Dollars (\$300.00) to the  
22 employee and not more than One Thousand Dollars  
23 (\$1,000.00) to the store manager for a third offense  
24 within a two-year period following the first offense.

1 In addition to any other penalty, the store's license  
2 to sell tobacco products or nicotine products or the  
3 store's sales tax permit for a store that is  
4 predominantly engaged in the sale of vapor products in  
5 which the sale of other products is merely incidental  
6 may be suspended for a period not exceeding thirty  
7 (30) days, or

8 d. not more than Three Hundred Dollars (\$300.00) to the  
9 employee and not more than One Thousand Dollars  
10 (\$1,000.00) to the store manager for a fourth or  
11 subsequent offense within a two-year period following  
12 the first offense. In addition to any other penalty,  
13 the store's license to sell tobacco products or  
14 nicotine products or the store's sales tax permit for  
15 a store that is predominantly engaged in the sale of  
16 vapor products in which the sale of other products is  
17 merely incidental may be suspended for a period not  
18 exceeding sixty (60) days.

19 2. When it has been determined that a penalty shall include a  
20 license or permit suspension, the ABLE Commission shall notify the  
21 Oklahoma Tax Commission, and the Tax Commission shall suspend the  
22 store's license to sell tobacco products or nicotine products or the  
23 store's sales tax permit for a store that is predominantly engaged  
24 in the sale of vapor products in which the sale of other products is

1 merely incidental at the location where the offense occurred for the  
2 period of time prescribed by the ABLE Commission.

3 3. Proof that the defendant demanded, was shown, and reasonably  
4 relied upon proof of age shall be a defense to any action brought  
5 pursuant to this section. A person cited for violating this section  
6 shall be deemed to have reasonably relied upon proof of age, and  
7 such person shall not be found guilty of the violation if such  
8 person proves that:

- 9 a. the individual who purchased or received the tobacco  
10 product, nicotine product or vapor product presented a  
11 driver license or other government-issued photo  
12 identification purporting to establish that such  
13 individual was twenty-one (21) years of age or older,  
14 or
- 15 b. the person cited for the violation confirmed the  
16 validity of the driver license or other government-  
17 issued photo identification presented by such  
18 individual by performing a transaction scan by means  
19 of a transaction scan device.

20 Provided, that this defense shall not relieve from liability any  
21 person cited for a violation of this section if the person failed to  
22 exercise reasonable diligence to determine whether the physical  
23 description and picture appearing on the driver license or other  
24 government-issued photo identification was that of the individual

1 who presented it. The availability of the defense described in this  
2 subsection does not affect the availability of any other defense  
3 under any other provision of law.

4 D. If the sale is made by an employee of the owner of a store  
5 at which tobacco products, nicotine products, or vapor products are  
6 sold at retail, the employee shall be guilty of the violation and  
7 the employee and the store manager shall be subject to the fine.

8 Each violation by any employee of an owner of a store licensed to  
9 sell tobacco products or nicotine products or permitted to sell  
10 vapor products shall be deemed a violation against the owner for  
11 purposes of a license suspension pursuant to subsection C of this  
12 section. Each violation by an employee of a store predominantly  
13 engaged in the sale of vapor products in which the sale of other  
14 products is merely incidental shall be deemed a violation against  
15 the owner for purposes of a sales tax permit suspension pursuant to  
16 the provisions of subsection C of this section. An owner of a store  
17 licensed to sell tobacco products or nicotine products or permitted  
18 to sell vapor products shall not be deemed in violation of the  
19 provisions of the Prevention of Youth Access to Tobacco Act for any  
20 acts constituting a violation by any person, when the violation  
21 occurs prior to actual employment of the person by the storeowner or  
22 the violation occurs at a location other than the owner's retail  
23 store. For purposes of determining the liability of a person  
24 controlling franchises or business operations in multiple locations,

1 for any violations of subsection A or B of this section, each  
2 individual franchise or business location shall be deemed a separate  
3 entity.

4 E. On or before December 15, 1997, the ABLE Commission shall  
5 adopt rules establishing a method of notification of storeowners  
6 when an employee of such storeowner has been determined to be in  
7 violation of this section by the ABLE Commission or convicted of a  
8 violation by a municipality.

9 F. 1. Upon failure of the employee to pay the administrative  
10 fine within ninety (90) days of the day of the assessment of such  
11 fine, the ABLE Commission shall notify Service Oklahoma, and Service  
12 Oklahoma shall suspend or not issue a driver license to the employee  
13 until proof of payment has been furnished to Service Oklahoma.

14 2. Upon failure of a storeowner to pay the administrative fine  
15 within ninety (90) days of the assessment of the fine, the ABLE  
16 Commission shall notify the Tax Commission, and the Tax Commission  
17 shall suspend the store's license to sell tobacco products or  
18 nicotine products or the store's sales tax permit for a store that  
19 is predominantly engaged in the sale of vapor products in which the  
20 sale of other products is merely incidental until proof of payment  
21 has been furnished to the Oklahoma Tax Commission.

22 G. Cities and towns may enact and municipal police officers may  
23 enforce ordinances prohibiting and penalizing conduct under  
24 provisions of this section, but the provisions of municipal

1 ordinances shall be the same as provided for in this section, and  
2 the penalty provisions under such ordinances shall not be more  
3 stringent than those of this section.

4 H. County sheriffs may enforce the provisions of the Prevention  
5 of Youth Access to Tobacco Act.

6 SECTION 2. This act shall become effective November 1, 2025.

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